

11	30-2024-01395894 Librush vs. General Motors, LLC	Off Calendar
12	30-2024-01396064 Mesbah vs. ALHV, LLC	1) Motion to Deem ALHV's Requests for Admission Responses as Admitted Plaintiff Ezat Mesbah, by and through her Successor in Interest Alan Safari's ("Plaintiff") unopposed Motion to Deem defendant ALHV, LLC dba Villa Valencia Healthcare Center's ("ALHV") responses to Requests for Admission, Set One ("RFA") as admitted is DENIED as ALHV served responses to the RFA's on March 6, 2025 (See Declaration of Jessica Munoz, Exhibit D). Where a compliant RFA response is in place prior to the hearing, the sanction of deeming the RFAs admitted is unavailable. Civ. Proc. Code § 2033.280(c). However, monetary sanctions for the expense of moving for these responses may still be obtained and, here, Plaintiff requests \$2,430 in monetary sanctions against ALHV and its counsel of record on this motion. Counsel's billing rate is a reasonable \$395/hr. The hours requested are high given no opposition or reply brief was filed on this motion, and that requested time is deducted. The appearance time is also split evenly between the four motions. The total monetary sanctions against ALHV and its counsel of record on this motion is: \$395/hr. x 2 hrs. + \$60 fee = \$850 2) Motion to Compel Aspen's Responses to Form Interrogatories Plaintiff's Motion to Compel defendant Aspen Skilled Healthcare, Inc.'s ("Aspen") responses to Form Interrogatories, Set One ("FROG") is GRANTED The proof of service ("POS") of the FAC indicates that "FROG – General" were served on Aspen. (ROA 34.) Although Aspen argues there is no proof the FROG was served on Aspen and subsequently that the "corrected" POS does not prove service on Aspen, the original POS <u>does</u> state FROG were served on Aspen. Additionally, defense counsel appears to concede Aspen was served with the discovery requests specifically to Aspen and not simply as to ALHV. (Opposition

	3:7-14; Munoz Decl. ¶ 2, Ex. A.) Even if the court were to discount the “corrected” POS, the original POS <u>does</u> include FROG being served on Aspen. Evidence addressing Aspen’s objection filed with the reply brief also shows the written discovery was sent to First Legal for service on Aspen. (Willoughby Reply Decl. ¶¶ 7 – 8, Ex. B.) Service of the FROG was proper on Aspen, yet Aspen failed to serve any responses, even following a meet and confer between party counsel wherein responses were requested by 11/27/24. Aspen’s responses to FROG apparently have not been served and any objections are therefore waived. (Civ. Proc. Code § 2030.290(a).) Plaintiff’s motion was proper to compel Aspen’s initial responses to FROG. (Civ. Proc. Code § 2030.290(b).) The motion is granted, and Aspen is ordered to serve objection-free responses to the FROG within 30-days of service of this ruling. Monetary sanctions are also permissible. (Civ. Proc. Code § 2030.290(c).) This motion is almost identical to the SPROG motion so the requested 2.5 hours will be split between the two motions. There are joint opposition/reply briefs covering the FROG, SPROG, and RFP motions, so the 1.5 hours for a reply will be split between the three motions. Finally, the 2.0 hours of hearing time will be split evenly amongst the four motions. The total monetary sanctions against Aspen and its counsel of record on this motion is: \$395/hr. x 2.25hrs. + \$60 fee = \$948.75 3) Motion to Compel Aspen’s Responses to Special Interrogatories Plaintiff’s Motion to Compel defendant Aspen’s responses to Special Interrogatories, Set One (“SPROG”) is GRANTED. Aspen’s argument boils down to the point that POS indicating SPROG and Requests for Production, Set One (“RFP”), relating to ALHV were served, but not SPROG/RFP requests relating to Aspen. However, Plaintiff filed a corrected POS and provided evidence the Aspen SPROG/RFP were sent to First Legal for service on Aspen. (Willoughby Reply Decl., ¶¶ 4-8, Exs. A – B.) Additionally, defense counsel stated she had agreed to provide substantive responses from defendants
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		(which would include Aspen) in exchange for Plaintiffs' counsel taking the motions being taken off calendar, which is a concession the SPROG/RFP as to Aspen were actually served on Aspen. (Munoz Decl. ¶ 2, Ex. A.). As Aspen's responses to SPROG were not served, any objections are therefore waived. (Civ. Proc. Code § 2030.290(a).) The motion is granted, and Aspen is ordered to serve objection-free responses to the SPROG within 30-days of service of this ruling. Monetary sanctions are also permissible. (Civ. Proc. Code § 2030.290(c).) This motion is almost identical to the FROG motion, so the total monetary sanction against Aspen and its counsel of record on this motion is: \$395/hr. x 2.25hrs. + \$60 fee = \$948.75 4) Motion to Compel Aspen's Responses to Requests for Production Plaintiff's Motion to Compel defendant Aspen's responses to RFP is GRANTED. As with the SPROG motion above, the court finds the RFP relating to Aspen to have been properly served. Aspen's failure to provide any responses to the RFP resulted in the waiver of objections. (Civ. Proc. Code § 2031.300(a).) The motion is granted, and Aspen is ordered to serve objection-free responses to the RFP within 30-days of service of this ruling. Monetary sanctions are also permissible. (Civ. Proc. Code § 2031.300(c).) The total monetary sanction against Aspen and its counsel of record on this motion is: \$395/hr. x 2.5 hrs. + \$60 fee = \$1,047.50 Plaintiff is ordered to give notice of these rulings.
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